

Delaware County Board of Zoning Appeals June 25th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=6TKVYtVjlt4
Publication Date	2026-06-26T15:24:25Z
Target Category	delaware_county

Notice: This report is provided by the [Muncie Policy Memo](#) as a public service. This summary is generated automatically using artificial intelligence from public video transcripts, both of which are prone to error. The report is intended to provide an overview of meeting business and an aid to accessing detailed information from the video recording. When accuracy is critical, please refer to the official video recording or approved minutes.

Municipal Meeting Summary Report

Meeting: Delaware-Muncie Metropolitan Board of Zoning Appeals

Date: June 2026 (Regularly Scheduled Monthly Meeting)

Report Format: Chronological Municipal Summary & Analysis

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at [00:05:00](#) by the presiding officer for the June 2026 regular monthly session of the Delaware-Muncie Metropolitan Board of Zoning Appeals.
- **Attendance:**
 - **Present:** Matt Billington, Delaney Frri (Fry), Christy Knap, Leslie Matthew, Steven Hines, John Hamilton (arrived later during proceedings at [00:21:49](#)), and Richard Ivy (arrived during new business at [00:27:01](#)).
 - **Absent:** None.
 - **Quorum:** Established with five initial members present at roll call.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** 00:05:18 The board opened with the Pledge of Allegiance.
 - **Approval of Minutes:** 00:09:28 The board considered the minutes from the April 2026 monthly meeting.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (5 yeses: Billington, Rich, Hines, Knap, Matthew).
-

3. Substantive Business & Board Action

Old Business

- 00:10:09 **BZA 30-26: Housing Authority of the City of Muncie, Indiana**
 - **Sponsor / Presenter:** Kathy Vanise (Ashton Land Surveyor).
 - **Deliberation Summary:** Request for variances from the comprehensive zoning ordinance to allow ornamental trees instead of shade trees in the rear and side buffer yards for a new storage unit in a business zone located in the 1500 block at the northeast corner of Madison Street and 9th Street. The applicant cited hardships regarding potential root damage to adjacent structures on the north property line and spatial limitations due to electrical and gas lines.
 - **Item-Specific Public Input:**
 - 00:19:15 Mara Hofferan (400 S. Walnut St.) spoke representing the YWCA, noting a neutral position and thanking the applicant for adding landscaping.
 - **Action & Vote Disposition:** Approved 4-2 (Yeses: Billington, Hamilton, Matthew, Hines/Rich/Knap votes split; official action recorded as 4 yeses, 2 nos).
-

New Business

- 00:22:43 **BZA 23-26: Holly Reed**
 - **Sponsor / Presenter:** Holly Reed (Property Owner).
 - **Deliberation Summary:** Request for a variance of use to allow two RVs to be occupied in a farm zone rather than an RV park at 8904 South US 35, Perry Township. The applicant stated the RVs are used seasonally by family members during summer months. Concerns were raised regarding waste management and building safety.
 - **Item-Specific Public Input:**
 - 00:27:23 Michelle Milligan spoke in support.
 - 00:28:03 Jim Drew (Daleville) spoke in opposition, raising concerns over wastewater/septic containment and county regulations.

- **Action & Vote Disposition:** Approved 5-2 with conditions that the variance is for the applicant only, waste disposal is properly managed via haulers, and usage is restricted to June through October.
- **00:36:18 BZA 29-26: Mark A. Williams**
 - **Sponsor / Presenter:** Mark A. Williams (Property Owner).
 - **Deliberation Summary:** Request for a variance of use to keep an increased number of pet dogs (11 dogs/kennel) and a variance for an increased fence height/placement forward of the front dwelling wall on a corner lot at 1208 North Country Club Road, Liberty Township. Discussion heavily focused on sightline obstructions at the intersection and county right-of-way jurisdiction.
 - **Item-Specific Public Input:**
 - **00:35:35** Sandy Wis (mother of applicant) spoke in favor.
 - **00:47:27** John Troop spoke in favor.
 - **00:48:27** Ron Killian (5101 E. Hines St.) spoke in opposition, citing severe visibility hazards for motorists and motorcyclists turning at the intersection.
 - **Action & Vote Disposition:**
 - *Dog Variance:* Approved 4-3 with conditions that the dog count is restricted to the applicant only and no replacements are permitted as dogs pass away, scaling down to the ordinance limit.
 - *Fence Variance:* Denied 5-2 due to right-of-way and safety/visibility violations.
- **00:59:10 BZA 32-26: Joshua Power**
 - **Sponsor / Presenter:** Joshua Power (Property Owner).
 - **Deliberation Summary:** Request for a variance to allow an increased height (14-foot door, 29-foot overall peak) for a new detached garage in a residence zone at 4101 South Whitney Road, Liberty Township, on a 5-acre parcel.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) with the condition that the structure be for personal storage only.
- **01:02:19 BZA 33-26: Steven G. Clemens**
 - **Sponsor / Presenter:** Steven G. Clemens (Property Owner).
 - **Deliberation Summary:** Request for a variance to allow a reduced front setback for a new 28x28 detached garage in a farm zone at 4951 West County Road 400 South, Salem Township.
 - **Item-Specific Public Input:**
 - **01:05:00** William Shields (neighbor) expressed concerns regarding road setbacks, drainage ditches, and line-of-sight clearing.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) with the condition of personal storage use only.
- **01:22:04 BZA 34-26: Ashley Morrison & CAFA LLC**
 - **Sponsor / Presenter:** Ashley Morrison (Applicant).

- **Deliberation Summary:** Request for a variance of use to allow the keeping of 16 hens/birds in a residence zone at 604 West County Road 600 South, Monroe Township.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) restricted to the applicant only and proper pen containment.
- **01:20:00 BZA 35-26: Ty and Michelle Milligan**
 - **Sponsor / Presenter:** Ty Milligan (Applicant).
 - **Deliberation Summary:** Request for a variance of use to allow a lean-to outbuilding without a primary dwelling and an on-site job trailer/RV in a residence zone at 5730 East Enlow Springs Road, Liberty Township, during property development.
 - **Item-Specific Public Input:**
 - **01:26:46** Tom McGee spoke in favor.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) with conditions that it is for the applicant only, waste is properly handled, and the variance expires December 31, 2030.
- **01:30:20 BZA 36-26: Local Union Number 855, IBEW**
 - **Sponsor / Presenter:** None present when called.
 - **Deliberation Summary:** Request for a reduced front setback for an existing structure for a building addition at 4601 South Maker Avenue. Because the applicant was absent, the board voted to table/continue the item.
 - **Action & Vote Disposition:** Continued to the next meeting by Voice Vote / Passed Unanimously (7 yeses). *(Later revisited at 03:51:36 and formally continued to July 30th).*
- **01:34:37 BZA 37-26: Steven Smith**
 - **Sponsor / Presenter:** Steven Smith (Property Owner).
 - **Deliberation Summary:** Request for a variance of use to allow an existing detached garage without a dwelling in a residence zone at the southeast corner of Oakville Road and Hooer Street (625 W. Oakville Rd.), following the court/county-mandated demolition of an unsafe primary dwelling.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) conditioned on personal storage use only.
- **01:41:11 BZA 38-26: Benson Motorcycles Inc. & Wawa**
 - **Sponsor / Presenter:** Mimi Herwitz (Herwitz Enterprises / Developer) & Pat Moon (Wawa).
 - **Deliberation Summary:** Request for variances for a new gas station and convenience store at 6410 West McGalliard Road, including increased driveway width (40 ft), a drive-thru pickup window along the front of the building facing Nebo Road, increased sign face area, and increased sign height for ground signs.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:**
 - *Driveway Width:* Approved by Voice Vote (7 yeses).
 - *Signage (Height & Area):* Approved 5-2.
 - *Drive-Thru Location:* Approved by Voice Vote / Passed Unanimously (7 yeses).
- **02:06:25 BZA 39-26: Steven Massie (Steve's Trees)**
 - **Sponsor / Presenter:** Steven Massie (Business Owner).
 - **Deliberation Summary:** Request for a modification of a previously approved 6-month temporary variance of use (BZA 65-25) to allow ongoing operation of a tree service business, including vehicle/brush/tree storage in a farm zone at 11801 West County Road 400 South, Salem Township. Extensive debate occurred regarding historical open burning violations, property line adjustments with neighbors, and the sufficiency of a 1.25-acre parcel for commercial tree operations.
 - **Item-Specific Public Input:**
 - **02:16:43** Karen Westerfield spoke in favor.
 - **02:21:03** Britney Holloway spoke in favor.
 - **02:22:02** Ernie Westerfield spoke in favor.
 - **02:23:02** Mara Hofferan (Attorney) spoke in opposition on behalf of neighbors (Milanders and Reeds), citing zoning non-conformity, visual impact, and solid waste/burning concerns.
 - **02:28:28** Deborah Clingman spoke in opposition, citing health impacts from prior smoke and unmanaged burn piles.
 - **02:31:51** Nick Millander spoke in opposition, highlighting historical burning issues and spatial limits.
 - **Action & Vote Disposition:** Failed to achieve a majority (Tie vote: 3 yeses, 3 nos, 1 abstention). **Automatically continued to the next BZA meeting on July 30th.**
- **02:50:33 BZA 40-26: Scott and Militia Miller**
 - **Sponsor / Presenter:** Scott/Militia Miller (Applicants) & Emma Miller (Daughter).
 - **Deliberation Summary:** Request for a variance of use to allow keeping hens, roosters, chicks, goats, and rabbits on less than 5 acres (2.5 acres) and a decreased distance from animal enclosures to the closest dwelling at 7313 South Cowan Road, Monroe Township, primarily supporting active 4-H and FFA youth livestock projects.
 - **Item-Specific Public Input:**
 - **02:56:11** Randall Crumb (neighbor) spoke in favor.
 - **02:56:40** Emma Miller spoke in favor regarding 4-H educational impacts.
 - **02:57:41** Katie Nixon (4-H Council President) spoke in strong support.
 - **02:58:28** Elizabeth & Tom Parker spoke in support.
 - **02:59:55** Susan Nasser spoke in support.
 - **03:02:14** Robbie Michael spoke in support.
 - **03:03:10** Jennifer Crumb (neighbor) spoke in support.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) restricted to the applicant only.

- **03:05:46 BZA 41-26: Ryan and Jennifer Reef**
 - **Sponsor / Presenter:** Ryan Reef (Applicant).
 - **Deliberation Summary:** Request for a variance of use to allow a niche used automobile sales business (8–10 operable vehicles) in a community business zone at 1026 West Jackson Street.
 - **Item-Specific Public Input:**
 - **03:10:55** Will Stadium spoke in favor.
 - **03:12:26** David Nelson (neighbor) spoke with concerns regarding safety, sightlines, and concrete safety barriers encroaching near sidewalks/right-of-ways.
 - **Action & Vote Disposition:** Approved 6-1 with conditions prohibiting salvage activity/non-running vehicles and restricting the variance to the applicant/lease only.
- **03:18:33 BZA 42-26: Rachel Susovich (Lexera Properties LLC)**
 - **Sponsor / Presenter:** Rachel Susovich (Property Owner).
 - **Deliberation Summary:** Request for a variance of use to allow group housing in a student social services zone and reduced parking at 11000 West Riverside Avenue, facilitating a sorority/student housing partnership with Ball State University.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously (7 yeses) with conditions that the variance is for the applicant only and expires in August 2027.
- **03:27:35 BZA 43-26: Atlas Tower and Muncie Redevelopment Commission**
 - **Sponsor / Presenter:** Parker Bingham (Atlas Tower) & Jeff How (Muncie Redevelopment Commission).
 - **Deliberation Summary:** Request for a determination under the wireless communications facilities ordinance to allow a new 125-foot monopole communication facility (AT&T primary carrier), reduced setbacks from dwellings, and reduced landscaping/buffer treatments due to FEMA floodway constraints on a city-owned parcel located approximately 140 ft north of Elizabeth Ave and Euclid Ave.
 - **Item-Specific Public Input:**
 - **03:44:38** Maggie Hoy (neighbor) spoke in opposition, raising severe historical flood concerns along the ditch and potential elevation changes.
 - **Action & Vote Disposition:** Approved 6-0 (1 abstention) conditioned on continued coordination with the DMMPC and DNR regarding landscaping plans.

4. Open Public Comment / Citizen Forum

- *Note:* The board integrated public commentary directly into individual public hearings for each case docket rather than holding a separate open forum at the conclusion. No general

citizen forum was conducted at the end of the agenda.

5. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - **03:53:29** Staff announced that the Ordinance Revision kickoff date is scheduled for July 6th, marking the commencement of a 14-month project by American Structure Point to update and combine the zoning and subdivision ordinances into a Unified Development Ordinance (UDO).
 - Staff issued a public security warning regarding recent AI/phishing scam emails targeting applicants regarding variance fee payments. Consequently, future online dockets will restrict public document postings to agendas and essential notices rather than full application files containing private data.
 - **Next Meeting Notice:** July 30th at 6:00 PM in the same meeting room.
 - **Adjournment: 03:56:29** The meeting was officially adjourned following a motion and voice vote.
-

Muncie Policy Memo Civic Monitoring Automated Pipeline. Report generated on 2026-09-12 11:36:59 using model gemini-3.5-flash-lite.